

HOUSE BILL 374

By Zachary

AN ACT to amend Tennessee Code Annotated, Title 1,
Chapter 3 and Title 27, Chapter 1, relative to
causes of action.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 1-3-121, is amended by deleting the section and substituting:

Notwithstanding another law to the contrary, a cause of action exists in state court under this chapter for any affected person who seeks declaratory or injunctive relief in any action brought in such state court regarding the legality or constitutionality of a governmental action. A cause of action does not exist under this chapter to seek damages. This section does not waive or abrogate the immunities and privileges available to this state, state entities, and state officials under existing federal or state law, or expand the justiciability doctrines applicable to state courts.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it, and applies to actions filed on or after that date.